



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Secretary to the Sangguniang Bayan

OFFICE of the SANGGUNIANG BAYAN
PRIETO DIAZ, SORSOGON
PRIETO DIAZ, SORSOGON

RELEASED

BY: PINKY E. DESTURA

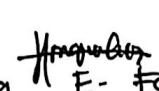
DATE: 9-23-25 TIME: 1:31 pm

1st Endorsement
September 23, 2025

Respectfully transmitted to **HON. JORGE DEUNA**, Punong Barangay of San Isidro, the herein attached Resolution No. 166-2025 entitled: **"A RESOLUTION DECLARING AS VALID BARANGAY ORDINANCE NO. 001 SERIES OF 2025 OF BARANGAY SAN ISIDRO, PRIETO DIAZ, SORSOGON, SUBJECT TO SOME AMENDMENTS."** for his information and appropriate action.


BERNADETTE R. ESPENA- YAO
Secretary to the Sangguniang Bayan

Cc:


Clara E. Espinola
Prog. Secretary
9/24/25



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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 12TH SANGGUNANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON SEPTEMBER 8, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/ Presiding Officer
Hon. Ryand D. Diño	Sangguniang Bayan Member
Hon. Vicente B. Bayoca	Sangguniang Bayan Member
Hon. Bienvenido D. Ayo, Jr.	Sangguniang Bayan Member
Hon. Joseph H. Yap, Jr.	Sangguniang Bayan Member
Hon. Alexander D. Destura	Sangguniang Bayan Member
Hon. Jo Madel D. Domalaon	Sangguniang Bayan Member
Hon. Juan D. Ebid	Sangguniang Bayan Member
Hon. Lilia D. Oliveres	Sangguniang Bayan Member
Hon. Antonio J. Emanó, Jr.	LnB Pres./S. B. Member
Hon. Rene Joseph D. Domasian	SKMF Pres./S. B. Member

ABSENT: None

RESOLUTION NO. 166-2025

Introduced by the council

A RESOLUTION DECLARING AS VALID BARANGAY ORDINANCE NO. 001 SERIES OF 2025 OF BARANGAY SAN ISIDRO, PRIETO DIAZ, SORSOGON, SUBJECT TO SOME AMENDMENTS.

WHEREAS, transmitted for the review of the Sangguniang Bayan is San Isidro Barangay Ordinance No. 001 Series of 2025 entitled, "*An Ordinance Prohibiting The Copra Buyer To Purchase Copra And Wholenut (Binook) From Residents Of Barangay San Isidro, Who Do Not Own A Coconut Land Or Not A Tenant*"

WHEREAS, the joint committees of Rules and Good Government and Committee on Barangay Affairs, find the said ordinance to be well-intentioned as it aims to rampant stealing of coconuts in any form (whole, husked, copra, etc.);

WHEREAS, hereunder are the findings of the Sangguniang Bayan which the Sangguniang Barangay should consider, to wit;

- (1) In the Title itself. According to the procedure prescribed by law, an ordinance must conform to the following requirements (*underscoring emphasis*): ".

(4) must not prohibit but may regulate trade. . . ." Inasmuch as coconut buying is a trade or business which anyone may engage in, therefore the barangay ordinance should regulate, and not prohibit it;

- (2) In the process of regulation a business, the barangay may impose regulation or policies on, but not limited to: (a) registration of coconut buying business with the barangay, complying with the requirements set by the barangay (b) maintenance of record of coconut land owners, tenants, or caretakers and (c) maintenance of logbook / record of coconut sellers and daily transactions and make it available for inspection upon request; (d) monitoring and/or enforcement of the ordinance;
- (3) In Section IV Prohibited Acts. On "*picking or collecting fallen coconuts in coco farms that are not their own*" – which may qualify as stealing or theft. Theft is a criminal offense, punishable by the Revised Penal Code;
- (4) In the same section, minors are included in imposition of penalty. By law, minors generally are exempted from criminal liability and should undergo some intervention program;
- (5) In Section V Penalty Clause. Section 391 (12) of the Local Government Code of 1991 provides that the Sangguniang Barangay, shall authorize the Punong Barangay to, among others, (b) prescribe fines in amounts not exceeding one thousand pesos (P1,000.00) for violation of barangay ordinances.
- (6) In the same section, it referenced RA 11362 which is entitled: "*An Act Authorizing The Court To Require Community Service In Lieu of Imprisonment For The Penalties Of Arresto Menor And Arresto Mayor . . .*" The title of the act itself, explicitly states that, it is a court, not a barangay, that has the discretion to require community service as a penalty;

WHEREAS, the Sangguniang Bayan therefore strongly suggests that amendments be made accordingly to the subject barangay ordinance;

WHEREAS, notwithstanding the suggested amendments, this collegial body finds the said ordinance to be well within the powers of the barangay as provided for in the Local Government Code of 1991;

WHEREAS, upon motion of Hon. Juan Ebid, duly seconded by Hon. Alexander Destura;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to declare as valid Barangay Ordinance No. 001 series of 2025 of Barangay San Isidro, Prieto Diaz, Sorsogon, subject to some amendments;

FINALLY RESOLVED, to transmit this resolution to the Sangguniang Barangay of San Isidro through its Punong Barangay Joerge Deuna; copy furnished all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer